

Mrs. Rajendra Kumar Sharma Stone Creaser, Gonda v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 17 February 2023 · Writ - C No. 4285 of 2023 · **Writ dismissed; objections under paragraph 6.8 left open.**

HEADNOTE

Writ for restoration of supply dismissed where the respondents disclosed an inspection, theft of 78.93 kW above sanctioned load, a provisional assessment of Rs 85,74,459 dated 17 December 2022, and an FIR, all said to have been suppressed. Disputed questions of fact were not tried. The petitioner was left to file objections under paragraph 6.8 of the U.P. Electricity Supply Code, 2005, and to seek supply from the competent authority on terms to the respondents' satisfaction. Merits not examined.

FACTUAL SUMMARY

The petitioner, holding a stone-crusher mill licence at Gonda, sought restoration of electricity supply by writ against the State of U.P. and three others. Counsel for the third and fourth respondents stated that an inspection had found theft of 78.93 kW over the sanctioned load, that a provisional assessment dated 17 December 2022 had fixed liability at Rs 85,74,459, and that an FIR had been lodged. The respondents said the petitioner had suppressed those facts.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.8

Objections under paragraph 6.8 where a restoration writ turns on disputed theft facts

HOLDING

A writ seeking restoration of supply is not entertained where it raises disputed questions of fact and the petitioner has suppressed the inspection, a finding of theft of 78.93 kW above the sanctioned load, the provisional assessment of Rs 85,74,459 dated 17 December 2022, and the FIR. The writ was dismissed. The petitioner may file objections under paragraph 6.8 of the U.P. Electricity Supply Code, 2005, and may approach the competent authority for supply on terms to the satisfaction of the respondents. The Court did not enter upon the merits or the rival contentions. ¶ 1

PRINCIPLE TAGS

para-6.8-objection-alternate-remedy The restoration writ was dismissed without a merits decision, and the petitioner was left to file objections under paragraph 6.8 of the U.P. Electricity Supply Code, 2005. ¶ 1

assessment-6.8-alternate-remedy The provisional assessment of Rs 85,74,459 dated 17 December 2022 was not adjudicated; the stated remedy against it was an objection under paragraph 6.8. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THEFT OF 78.93 KW WAS MADE OUT AND WHETHER THE PROVISIONAL ASSESSMENT OF RS 85,74,459 DATED 17 DECEMBER 2022 IS SUSTAINABLE.

The Court expressly did not enter upon the merits or the rival contentions. ¶ 1

NOT DECIDED — WHETHER, AND ON WHAT TERMS, ELECTRICITY SUPPLY SHOULD BE RESTORED.

Left to the competent authority, to the satisfaction of the respondents. ¶ 1

